

CV-25-008086 FUENTES, JOSE vs ON POINT GRADING AND PAVING INC – Plaintiff's Motion for Leave to File First Amended Complaint – GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party. [Civ. Proc. Code § 473(a)(1)]. A liberal pleading amendment policy applies to amendments at any stage of the proceedings, up to and including trial, absent prejudice to the adverse party. [Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, review denied]. The Court finds that Plaintiff's proposed amendment arises from the same general set of facts as Plaintiff's original complaint, and that permitting the requested amended pleading will not cause any prejudice to Defendant. [Garcia v. Roberts (2009), 173 Cal.App.4th 900] Plaintiff's motion is accordingly granted. Plaintiff shall file his First Amended Complaint within ten (10) days of the date of service of this order. The Court will sign the Proposed Order.

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